

Telangana State District Mineral Foundation (Trust) Amendment Rules, 2018

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State of Telangana - Act

Telangana State District Mineral Foundation (Trust) Amendment Rules, 2018

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Telangana State District Mineral Foundation (Trust) Amendment Rules, 2018

Rule TELANGANA-STATE-DISTRICT-MINERAL-FOUNDATION-TRUST-AMENDMENT-RULES-2018 of 2018

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Telangana State District Mineral Foundation (Trust) Amendment Rules, 2018

Published vide Notification No. G.O. Ms. No.38, Industries and Commerce (Mines-I) Department, dated 31.5.2018 and Published in the Telangana Gazette, Extraordinary, dated 31.5.2018

G.O. Ms. No.38. - In exercise of the powers conferred by sub-section (4) of Section 15 of the Mines and Minerals (Development and Regulation) Act, 1957 (Central Act 67 of 1957) as amended by Act 10 of 2015 and guided by the provisions contained in Article 244 read with Fifth and Sixth Schedule to the Constitution relating to administration of the Scheduled Areas and Tribal Areas and the provisions of the Panchayats (Extension to the Scheduled Areas) Act, 1996, and the Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, the Governor of Telangana hereby makes the following Telangana State District Mineral Foundation (Trust) Amendment Rules, 2018.

1.

Short title and commencement.

- 1.1 These rules may be called the Telangana State District Mineral Foundation (Trust) Amendment Rules, 2018.

1.2

They shall come into force from the date of their publication in the Official Gazette.

In sub-rule (2.3), the words Governing Council and Managing Committee shall be replaced with District Mineral Foundation Committee.

The following shall be inserted after sub-rule (2.3):

(2.3.1) Any impact of mining or mining related activity in Hyderabad District shall be attended to by the District Mineral Foundations of the adjoining districts.

3.

Definitions.

- The definition "Affected area", the word 'District Government' shall be read as 'State Government'.

The definition "Directly affected area",

(iii)

(a)

shall be read as:

Villages, Gram Panchayats and Urban areas within which the mines are situated and are operational. Such mining areas may extend to neighboring Village, Urban Areas or Mandal or Block or District or even State.

(iii)

(b)

shall be read as:

An area within a radius of ten kilometer from a mine or cluster of mines, irrespective of whether the area falls within the district concerned or adjacent district.

The definition "Indirectly affected areas",

(iv)

shall be read as:

The entire district shall be covered under indirectly affected area being adversely affected on account of economic, social and environmental consequences due to mining-related operations. The major negative impacts of mining could be by way of deterioration of water, soil and air quality, reduction in stream flows and depletion of ground water, congestion and pollution due to mining operations, transportation of minerals, increased burden on existing infrastructure and resources.

The definition "Affected people",

(v)

(a)

(3) shall be read as:

Any other as appropriately identified by the Public Representative Member.

The definition "Affected people",

(v)

(c)

shall be read as:

Affected families should be identified, as far as possible, in consultation with Public Representative Members.

The definition "Affected people",

(vi)

shall be added:

and Section 15(4)(a) of the Act.

The definition "Rules",

(x)

shall be read as:

The District Mineral Foundation (Trust) Rules, 2015 and Amended Rules, 2018.

In the definitions after (xi), the following shall be inserted:

(xii)

"District Mineral Foundation Committee" means the Committee which work for the interests, benefits and sustainable development of directly affected areas due to mining or mining related operations in particular and also the district as indirectly affected area in general, in such ways as may be prescribed by these Rules, in an effective, transparent and accountable manner.

(xiii)

"Public Representative Members" means elected Member of Parliament, Lok Sabha or Rajya Sabha and State Legislative Assembly or Legislative Council.

After Rule 4, the following shall be added :-

The Trust shall plan, allocate and ensure effective utilization of the funds accruing to the DMF

A. Constitution of the Trust. - (i) There shall be a Trust to be known as the District Mineral Foundation, constituted for each District of Telangana State.

(ii)

The trust shall be a perpetual body and shall have a common seal.

B. Composition of the Trust. - The trust consists of the District Mineral Foundation Committee comprised with the following members, namely :-

(i)

District Minister/In-charge Minister

: Chairperson Ex-Officio

(ii)

Members of Parliament, Lok Sabha

: Member

(iii)

Members of Parliament, Rajya Sabha

: Member

(iv)

Chairperson, Zilla Parishad

: Member

(v)

Members of legislative Assembly

: Member

(vi)

Members of legislative Council

: Member

(vii)

Project Officer, ITDA. (wherever ITDA exists)

: Member

(viii)

Asst. Director of Mines & Geology

: Member

(ix)

Lead Bank Officer of district (where DMF Account Member opened & under operation)

: Member

(x)

District Rural Water Supply Officer

: Member

(xi)

District Forest Officer

: Member

(xii)

District Pollution Control Board Officer

: Member

(xiii)

District Medical & Health Officer.

: Member

(xiv)

District Educational Officer.

: Member

(xv)

District Women & Child Welfare Officer

: Member

(xvi)

District Social Welfare Officer (BC, SC/ST,
Minorities)

: Member

(xvii)

District Youth & Sports Officer

: Member

(xviii)

GM, District Industrial Center

: Member

(xix)

District Panchayat Officer

: Member

(xx)

District Officer, R&B Dept.

: Member

(xxi)

Sr. Divisional Engineer (Works), South Central
Railway

: Member

(xxii)

District Officer, I&CAD Dept.

: Member

(xxiii)

District Panchayat Raj Engineer (PR)

: Member

(xxiv)

Chief Planning Officer

: Member-Convenor

(xxv)

Project Director, District Rural Development
Agency.

: Member-Treasurer

(xxvi)

District Collector and Magistrate

: Member-Secretary

The Chairperson Ex-officio may invite any other District Officer as special invitee in the interest of better monitoring and implementation of schemes/works.

Rule 5 shall be substituted as:

The functions of District Mineral Foundation Committee.

Sub-rule (5.1) shall be substituted as:

The activities of Trust will be governed by the District Mineral Foundation Committee.

Sub-rule (5.2) shall be substituted as:

The authority to manage the Trust shall vest in the District Mineral Foundation Committee.

Sub-rule (5.3) is omitted

Sub-rule (5.4) is omitted

Sub-rule (5.5) is omitted.

In sub-rule (5.6), the word 'Managing Committee' shall be substituted with District Mineral Foundation (Committee.

Sub-rule (5.6.1) is omitted.

In sub-rule (5.6.2), the word 'Managing Committee' shall be substituted with District Mineral Foundation Committee.

Sub-rule (5.6.3) is omitted.

The subheading for Rule 6 shall be substituted as 'Powers of District Mineral Foundation Committee'.

In sub-rule (6.1) the word 'Governing Council shall be replaced by 'District Mineral Foundation Committee'.

Sub-rule (6.1.1) shall be read as 'Voting on the annual account among Public Representative Members'.

Sub-rule (6.1.2) shall be read as:

The District Mineral Foundation Committee shall be responsible for development of annual and passing of the annual plan of the Trust (the Planning Committee shall assist the District Mineral Foundation Committee in preparation of annual plan alongwith tentative distribution of District Mineral Foundation Fund).

Sub-rule (6.1.3) is omitted.

Sub-rule (6.1.4) shall be read as:

The Planning Committee shall work under the Chairpersonship of Member-Secretary, District Mineral Foundation Committee. Depending upon the priority area welfare measures, the concerned District Head shall be the Member.

The role of planning committee is to assist the District Mineral Foundation Committee in preparation of budget for approved works or annual plans of the Trust, allocation of funds from time to time.

The Member-Secretary, District Mineral Foundation Committee shall from time to time through notification for empanelment of consultant(s) having expertise in relevant welfare measures as per Rule 10 for preparation of annual plans with tentative allocation and present it before the District Mineral Foundation Committee.

Sub-rule (6.1.6) shall be substituted as:

Approving the annual audit reports prepared and presented by the Chartered Accountant/firm.

For the purpose of maintenance of accounts of the Trust and preparation of annual reports, the Member-Secretary, District Mineral Foundation Committee shall appoint a registered Chartered Accountant/firm with the approval of District Mineral Foundation Committee.

Sub-rule (6.1.7) shall be modified as:

To approve the remuneration to;

(6.1.7.1) The appointed persons working for District Mineral Foundation Office;

(6.1.7.2) Consultant(s) empanelled to assist the Planning Committee;

(6.1.7.3) Registered Chartered Accountant/firm for maintenance of accounts of the Trust and preparation of annual reports, as per established norms;

(6.1.7.4) Remuneration and allowance to ombudsman and for running ombudsman office;

(6.1.7.5) Reimbursement of local travel within the district and daily allowance at the State Government DA rate for attending the meetings as applicable to Group-A officers of the State to non-official members.

(6.1.7.6) Remuneration to recognized Civil Societies or Non-Governmental Organizations for conduct of social audit surveys.

(6.1.7.7) Remuneration to the empanelled auditors of Accountant General entrusted with the scrutiny of Trust accounts through Accountant General.

(6.1.7.8) Meeting the miscellaneous expenses for conduct of meetings etc.

Sub-rule (6.1.8) is omitted.

Sub-rule (6.1.9) is omitted.

Sub-rule (6.1.10) is omitted.

After sub-rule (6.1.10) the sub-heading 'Powers of the Managing Committee' shall be substituted as 'Powers of the District Mineral Foundation Committee'.

In sub-rule (6.2), the word 'Managing Committee' shall be read as 'District Mineral Foundation Committee'.

Sub-rule (6.2.2) shall be substituted as:

Approving the list of works as proposed by the Public Representative Member(s).

Sub-rule (6.2.3), the word 'Gram Sabha' shall be substituted as 'Public Representative Members'.

Sub-rule (6.2.4), the word 'Affected areas' shall be read as 'the directly and the indirectly affected areas':

Sub-rule (6.2.5) shall be replaced as:

The appointment of any officer(s) or consultant(s) or auditors to assist the Trust by the Member-Secretary shall be with the approval of District Mineral Foundation Committee.

Sub-rule (6.2.7), the word 'Governing Council' shall be substituted with 'District Mineral Foundation Committee'.

Sub-rule (7.1) is omitted.

Sub-rule (7.2) is omitted.

Sub-rule (7.3) shall be replaced as:

The Meeting of the District Mineral Foundation Committee shall be held every month on a fixed schedule date as per calendar of meetings on intimation by the Member Secretary.

Sub-rule (7.4) is omitted.

The word 'Gram Sabha' in tide of Rule 8 shall be replaced with 'District Mineral Foundation Committee'.

Sub-rule (8.1) shall be replaced as:

The Public Representative Members shall meticulously assess the impact of mining and mining-related activity and propose suitable developmental schemes/works for upliftment of the directly and indirectly affected areas to be taken-up through the Trust Fund, formulation of criteria for fixing the priorities and developing annual plans as described under Rule 10.

Provided that such proposed works shall not overlap with the works to be taken-up by the concern Government Departments as part of regular work.

Sub-rule (8.1.1) shall be replaced as:

The quorum of the Public Representative Members in the District Mineral Foundation Committee meetings shall not be less than fifty percent.

Sub-rule (8.1.2) shall be replaced as:

The passing of any resolution with respect to approval of work(s) in the directly and indirectly affected areas among Public Representative Members shall be by simple majority.

Sub-rule (8.2) shall be replaced as:

The grounding of approved work(s) and monitoring shall be by the concerned Government Department-Member of the District Mineral Foundation Committee as per timelines for completion duly ensuring quality norms as per established standards.

Sub-rule (9.1)(a)(ii) shall be substituted as:

The utility of the amount shall be subject to approval of the District Mineral Foundation Committee.

The following shall be inserted as proviso to sub-rule (9.1)(c):

Provided that the District Mineral Foundation Committee may allocate spending as per the actual requirement.

Sub-rule (9.1)(d) shall be replaced as:

(i)

Not more than four per cent shall be used as administrative expenses of the Trust.

Provided that the District Mineral Foundation Committee may allocate spending as per the actual requirement.

(ii)

(a)

One percent on total DMF Trust Fund already deposited by the lease holders shall be transferred at once by all the District Mineral Foundations and henceforth as well to be deposited by tenth of every month in the Bank Account maintained by the Director of Mines & Geology.

(b)

The Director of Mines & Geology shall meet the expenditure for Administrative, Infrastructure and Information Technology & allied purposes.

After sub-rule (10.4)(ii), the following shall be inserted:

(iii)

The DMF Trust amount shall not be used for any Works/Schemes which are already under implementation as Flagship programmes of the State Government.

(iv)

Wherever, any works/schemes already under implementation but facing resource crunch the DMF Trust amount shall be used as matching grant.

After sub-rule (10.5)(1)(viii), the following shall be inserted:

(ix)

DMF Trust Fund shall not be misused in any manner whatsoever.

After sub-rule (10.5)(1)(viii), the following shall be inserted:

Sub-rule (10.6). - The Trust Fund for grounding and execution of any approved scheme/work(s) as per prioritization defined in sub-rule (10.1.1) or (10.1.2), the proportionate allocation in respect of directly affected area shall not be less than thirty percent.

a. DMF accrued from Coal. - The DMF contribution on Coal remitted so far shall be distributed in an equitable manner covering 13 Coal bearing constituencies and incur expenditure on 30:70 equating to directly affected area is to indirectly affected area among the 13 Coal bearing constituencies.

Henceforth, the DMF contribution on Coal shall be remitted in the respective District DMF Account covering 13 Coal bearing constituencies located in six districts in an equitable manner.

b. DMF accrued from Non-Coal. - The Contribution accrued on Non-Coal minerals shall be remitted in the respective Districts DMF Bank Accounts and incur expenditure on 30:70 equating to directly affected area is to indirectly affected area within the respective Districts

In sub-rule (11.2) the word 'Affected area' shall be substituted as 'directly and indirectly affected areas':

Sub-rule (11.4) shall be replaced as:

The process of developing the annual plan shall strictly adhere to the principles of bottom-up approach, duly obtaining the views of Public Representative Members representing the directly and indirectly affected areas and after approval by the District Mineral Foundation Committee.

Sub-rule (11.5) shall be replaced as:

The Public Representative Members shall come-up with proposals for implementation of schemes/works as part of annual planning process at the beginning of the fourth financial quarter every year, to be executed in the following financial year.

In sub-rule (11.6) the word 'Managing Committee' and 'Gram Sabha' shall be replaced with District Mineral Foundation Committee' and 'Public Representative Members' respectively:

Sub-rule (11.7) shall be replaced as:

In accordance with the funds provisionally earmarked, the Public Representative Members shall propose schemes/works for preparation of annual plan and implementation through deployment of Trust funds for various developmental schemes/works.

Sub-rule (11.8) shall be replaced as:

The Trust shall take initiatives for training and capacity building of one member from each affected family under skill development to be identified and proposed by Public Representative Member as part of preparation of such plans at the beginning of planning process.

Sub-rule (11.9) shall be replaced as:

The developmental schemes/works for which the funds to be used shall be identified in a manner such that local needs and priorities of the affected areas are reflected. Every proposed developmental scheme/work shall also have a verifiable and time bound outcome component.

In sub-rule (11.10), the word 'Gram Sabha' and 'Managing Committee' shall be replaced with 'Public Representative Members' and District Mineral Foundation Committee' respectively.

Sub-rule (11.11) shall be replaced as:

The annual plan of the Trust shall include a compendium of plans proposed by the Public Representative Members for betterment of the directly and indirectly affected areas besides other planned activities of the Trust for the financial year. The consolidated annual plan of the Trust shall also be guided by the principles contained in Rule 9 of these Rules for allocating the Trust Fund.

Sub-rule (11.12) shall be replaced as:

The draft annual plan shall be finalized by the District Mineral Foundation Committee assisted by the Planning Committee by the end of the fourth financial quarter. The District Mineral Foundation Committee shall debate and pass the draft annual plan by simple majority.

Sub-rule (13.1.4.3) shall be replaced as:

"An amount equivalent to 30% on seigniorage fee shall be recovered by the Government Engineering/Consuming Departments alongwith seigniorage fee from contractor bills on the quantity of minor mineral consumed in the construction and remitted to DMF account for any engineering work(s) entered agreement for execution on or after First April, 2018".

Sub-rule (14.1) shall be replaced as:

The Trust shall operate all its account(s) under the joint signatures of two signatories, being the Member-Secretary and the Treasurer of the District Mineral Foundation Committee.

The preamble of Rule 15 shall be replaced as:

The accounts of the District Mineral Foundation shall be audited every year by the audit agencies under empanelment with the Accountant General. The State Government shall address the Accountant General, obtain list of empanelled audit agencies and allot districts for conduct of District Mineral Foundation audit annually.

The audit report alongwith the annual report thereof shall be placed in the public domain.

Sub-rule (15.3) shall be deleted.

Sub-rule (15.4) shall be replaced as:

There shall be independent social-audit surveys every year on the outcome due to the development of the schemes/works through the Trust. Such surveys shall be taken-up by the recognized Civil Societies or Non-Governmental Organizations to be nominated by the Government, with atleast twenty five percent of the affected people so as to have feedback on the change in the living condition in the affected area.

The nominated recognized Civil Societies or Non-Governmental Organizations shall submit report(s) of the social audit to the Government as well as to the District Mineral Foundation Committee for examination on the effectiveness of the schemes/ works going to be proposed/under implementation and implemented for appraisal and taking corrective steps.

The best or worst practices shall be shared among the District Mineral Foundations as part of awareness and to avoid mis-utilization of District Mineral Foundation Fund.

In the sub-rule (15.7), the word 'Gram Panchayat' shall be replaced with 'District Mineral Foundation Committee'.

Sub-rule (15.8) is omitted:

Sub-rule (17.2) shall be substituted as:

Appointment shall be based on the recommendations of the Selection Committee consisting of the following three persons :-

Chief Minister of the State

: Member

Leader of Opposition of the State

: Member

Chief Justice of the State High Court

: Member

The appointment of the Ombudsman should be based on consensus of the Committee members.

Sub-rule (17.2.2) shall be replaced as:

The Ombudsman shall be appointed for tenure of three years extendable by two years based on performance appraisal by the Chairperson, Ex-officio to the District Mineral Foundation Committee assisted by the Member-Secretary, or till the incumbent attains the age of 65 years, whichever is earlier. There shall be no re-appointment.

Sub-rule (17.2.3) shall be replaced as:

On unsatisfactory performance, the Ombudsman may be removed by the Government on the recommendation by the Chairperson, Ex-officio and Member-Secretary of the District Mineral Foundation Committee.

Sub-rule (17.3.1) shall be replaced as:

The salary and allowances allocated to the Ombudsman shall be determined by the Chairperson, Ex-officio and Member-Secretary of the District Mineral Foundation Committee, it shall not less than that paid to an officer of the rank of First Class Judicial Magistrate.

Sub-rule (17.3.2) shall be replaced as:

In case where an Ombudsman is appointed for more than one district, the salary and allowances shall be as determined by the Government in consultation with Chairperson, Ex-officio and Member-Secretary of the District Mineral Foundation Committees. In such a case, the salary and allowances shall be shared proportionately by the respective District Mineral Foundation Committees.

Sub-rule (17.6) shall be replaced as:

Ombudsman may employ or may keep on retainership, subject to approval by the Chairperson, Ex-officio and Member-Secretary of the District Mineral Foundation Committee.

Sub-rule (17.7.8) shall be replaced as:

To furnish a report every year containing a general review of activities of the office of the Ombudsman during the preceding financial year to the Chairperson, Ex-officio and Member-Secretary of the District Mineral Foundation Committee alongwith such other information that may be considered necessary. In the annual report, the Ombudsman, on the basis of grievances handled by him/her, will review the quality of the working of the District Mineral Foundation Committee Members/authorities/committees and make recommendations to improve functioning of the Trust and Trust Fund. The report shall be put on the website of the Government.

In sub-rule (17.7.8.1), the word 'Gram Sabha' shall be with 'Public Representative Members'.

In sub-rule (17.9.3), the word 'At the earliest' shall be replaced with 'within thirty days'.

After sub-rule (17.9.3), the following shall be inserted:

17.9.3.1

An appeal lies with the State Information Commission on the disposal of any complaint by the Ombudsman within 30 days.

Sub-rule (17.10.3) is deleted.

Sub-rule (19.1) at other Members, it shall be replaced as:

In sub-rule (19.1)(i) all members of the legislative Council shall be added.

Sub-rule (19.1)(ii) is deleted.

Sub-rule (19.1)(iii) is modified as, all Mayors/atleast the Chairpersons of Municipalities.

Sub-rule (19.1)(iv), after 'Zilla Panchayat', the word 'Zilla Parishad' shall be added.

Sub-rule (19.1)(vi) is deleted.

Sub-rule (19.1)(vii), after 'Zilla Panchayat', the word 'Zilla Parishad' shall be added.

In sub-rule (19.1)(x), the word 'from the directly affected areas' shall be added.

Sub-rule (19.1)(xiii) shall be modified as District Level Heads/Nodal Functionaries of all programmes under PMKKKY as per Rule 10.1.1 and 10.1.2 under the purview of DISHA.

After sub-rule (19.1)(xiii), the following shall be inserted:

(19.1)(xiv), authorized person having fair knowledge of schemes/works under implementation on behalf of executing agency.

Sub-rule (19.2): Terms of reference:

Sub-rule (19.2)(i) shall be replaced as: Ensure that the programmes proposed by Public Representative Members and approved by District Mineral Foundation Committee are implemented in accordance with the guidelines.

Sub-rule (19.2)(ii) is deleted.

In sub-rule (19.2)(iii), the word 'District Planning Committee' shall be replaced with 'Planning Committee'.

In sub-rule (19.2)(v), the word 'District Planning Committee' shall be replaced with 'Planning Committee'.

In sub-rule (19.2)(ix), after 'Zilla Panchayat' the word 'Zilla Parishad' shall be added.

Sub-rule (19.3) shall be substituted as:

Programmes to be covered by DISHA:

DISHA monitors all non-statutory schemes of Government of India as administrative body. The monitoring of schemes under PMKKKY shall also be monitored or reviewed by DISHA to facilitate coordinated solution and to remove constrains of any kind in implementation of schemes or worlds through District Mineral Foundation Funds under PMKKKY.

In sub-rule (19.4), after 'MLAs', the word 'MLCs' shall be added.

Sub-rule (19.4.1) 'Illustrative schedule of meetings' shall be modified as:

April - Planning and Co-ordination meeting where all the proposed and approved schemes by Public Representative Members with budgetary allocations from District Mineral Foundation shall be reviewed with reference to timelines and

targets for implementation.

July, October and February remains as it is.

Member Secretary shall be personally responsible for convening meetings, the following shall be inserted:

Meeting notice should reach all Members atleast fifteen days prior to the meeting. Agenda notes should reach all Members atleast ten days prior to the meeting and proceedings of the meeting should be issued within ten days of the meeting.

Sub-rule (19.5.1) shall be replaced as:

District Level Heads/Nodal Functionaries of programmes under PMKKKY as per Rule 10.1.1 and 10.1.2 shall review the schemes under implementation with the executing agencies from time to time before review by the DISHA.

District Level Heads/Nodal Functionaries of all programmes under PMKKKY as per Rule 10.1.1 and 10.1.2 should assist DISHA in discharge of its functions, follow-up action on recommendations of the DISHA.

District Level Heads/Nodal Functionaries of all programmes under PMKKKY as per Rule 10.1.1 and 10.1.2 shall initiate action within thirty days of the meeting. Proceedings of the meeting shall be sent to relevant Department for action. Action Taken shall be monitored in DISHA meetings.

Regularity of the DISHA meetings and follow-up on its decisions will be regularly monitored at the time of making releases to States under Central and Centrally Sponsored Programmes, (stands deleted).

Sub-rule 19.6: Expenditure for the DISHA meeting:

The District Administration may incur expenditure on holding the meeting of DISHA at District level adhering to the norms applicable. The total expenditure shall not exceed Rs.2.00 lakhs per meeting and the bills should be cleared by the concerned State Government/DRDA or Zilla Parishad of the, the following shall be added:

District or whoever being the Treasurer of the District Mineral Foundation Committee based on actual. The norms of expenditure are:

Sub-rules (19.6.a) and (19.6.b) is clubbed as:

Non-official Members shall be entitled, for reimbursement of expenditure on local travel within the district and daily allowance at the State Government DA rate for attending the meetings as applicable to Group-A officers of the State.

Sub-rule (19.6 f) shall be replaced as:

The records of expenditure should be maintained at the District level and claims should be made by DRDA or Zilla Parishad of the District or whoever being the Treasurer of the District Mineral Foundation Committee based on actual.

After Rule 19.7, the following new Rule shall be inserted:

20.

Distribution of DMF Accrual on Coal.

- The contribution on Coal accrued so far in the District Mineral Foundation account in Komerambheem-Asifabad, Mancheri, Jayashankar-Bhupalpalli, Peddapalli, Khammam and Bhadradi-Kothagudem Districts shall be distributed in an equitable manner covering (13) Coal bearing constituencies namely (1) Kagaznagar and Asifabad in Komerambheem District, (2) Bellampalli, Mancheri and Chennur in Mancheri District, (3) Manthani, Ramagundam and Peddapalli in Peddapalli District, (4) Bhupalpalli in Jayashankar District, (5) Yellandu, Kothagudem and Manuguru in Bhadradi-Kothagudem District and (6) Sathupalli in Khammam District.

Henceforth, the District Mineral Foundation amount accrued on Coal shall be remitted in an equitable manner covering (13) Coal bearing constituencies in the existing District Mineral Foundation account in Komerambheem-Asifabad, Mancheri, Jayashankar-Bhupalpalli, Peddapalli, Khammam and Bhadradi-Kothagudem Districts.

21.

Power of the State Government.

- (i) Notwithstanding in any provision contained in these rules, the State Government shall have power to issue district specific, demographic specific, scheduled area specific, DMF Rules, for proper administration working, as and when required.

(ii)

The State Government may, by an order, relax the operation of any of the provisions of this rules as may be specified therein in the interest of the public.

Related AI tags, queries and research notes

Translation